



TRUE LAW IS RIGHT REASON

ARISTOTLE AND NATURAL LAW (c. 340 BCE)

IN CONTEXT

FOCUS

Natural law

BEFORE

c. 441 BCE In his tragedy *Antigone*, Sophocles suggests that there are unwritten and unalterable divine laws.

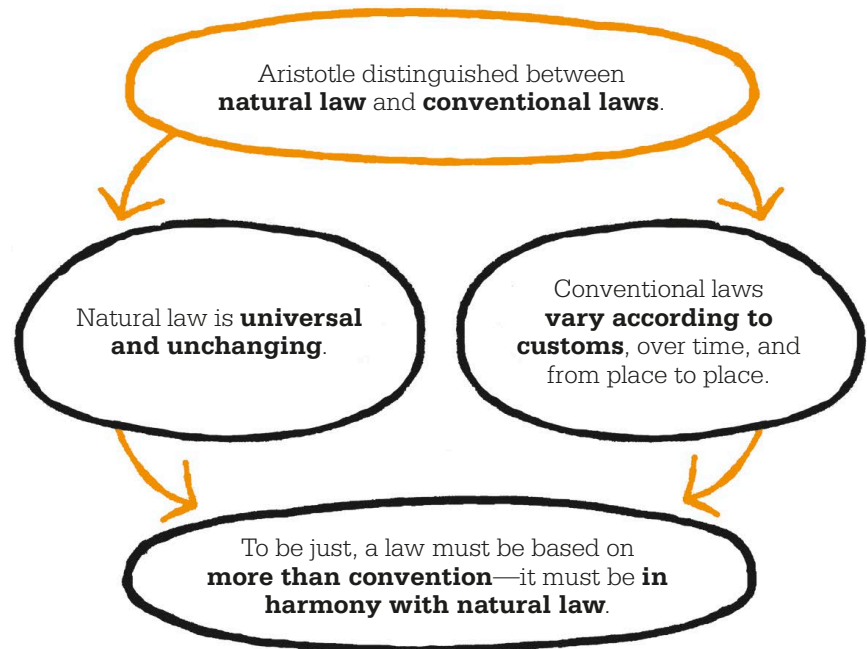
c. 375 BCE In *The Republic*, Plato argues that the ideal community is “established in accordance with nature.”

AFTER

c. 1050 CE Iranian Muslim scholar Al-Biruni argues that natural law is the survival of the fittest, which must be overcome by divine law, revealed by Muhammad.

c. 1140–1150 In his *Decretum*, Gratian equates natural law with the laws of the Church.

c. 1265–1274 Thomas Aquinas brings together Aristotle's philosophy and Christian theology in *Summa Theologica*.



In the 4th century BCE, the Greek philosopher Aristotle distinguished between the unchanging, universal law of nature and mankind's conventional laws, which vary from place to place. For a law to be just, he argued, it should be in harmony with natural law.

In his *Rhetoric*, Aristotle cited *Antigone*, a 5th-century tragedy by the Greek playwright Sophocles,

as an example of the two laws in conflict. In the play, Antigone breaks the king's edict by holding a funeral for her brother Polyneices. Aristotle observed that in a plea to the king, Antigone justifies breaking his conventional law with an appeal to a higher natural law, which does not belong “to today or tomorrow, it lives eternally: no one knows how it arose.”